

23STCV25178 23STCV25178

County: los-angeles

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Case Number: 23STCV25178 Hearing Date: July 15, 2026 Dept: 732

PFF Management LLC v. Roberto Bahena, et al.

Wednesday, July 15, 2026

CASE NUMBER: 23STCV25178

UNOPPOSED

Defendant Roberto Bahena's Demurrer to the Complaint

Facts: This is an action for fraud and declaratory relief. The Complaint alleges as follows. Plaintiffs PFF Management LLC, TCC Asset Management LLC, and Tracy Kao ("Plaintiffs"0 hired Defendant Roberto Bahena ("Defendant"0 to perform construction services, upon representations by Defendant that he was a licensed contractor. (Complaint at p. 3.) Defendant was not in fact a licensed contractor. (bid.) Defendant nonetheless demands sums he claims are owed to him, notwithstanding that his work was unlicensed, and Plaintiffs seek return of sums paid to Defendant. (Complaint at pp. 5–6.)

Procedural History: Plaintiffs filed the Complaint on October 16, 2023, alleging three causes of action:

Intentional Tort

Fraud

Declaratory Relief

Defendant filed the present demurrer on September 10, 2025. No opposition has been filed.

Analysis

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id., § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant Roberto Bahena demurs to the Complaint of Plaintiffs PFF Management LLC, TCC Asset Management LLC, and Tracy Kao (“Plaintiffs”) on the grounds that the claims against him, filed on October 16, 2023, were extinguished by a Chapter 7 bankruptcy discharge of April 1, 2024, and subsequently dismissed by the bankruptcy court pursuant to Plaintiffs’ failure to abide by court orders on April 25, 2025. (RJN Exhs. A, B.)

It is true that “[a] discharge order under the Bankruptcy Code: extinguishes the debtor’s personal liability with respect to his creditor’s claims; voids any judgment to the extent of the debtor’s personal liability for a discharged debt; and enjoins the commencement or continuation of civil suits against the debtor personally to recover any discharged debt.” (*Hurley v. Bredehorn* (1996) 44 Cal.App.4th 1700, 1703.) And by analogy to the principle that “dismissals pursuant to a terminating sanction for violation of discovery orders are indeed res judicata” (640 Octavia LLC v. Walston (2025) 111 Cal.App.5th 861, 871), the dismissal order identified Defendant’s request for judicial notice may furnish a basis for claim preclusion against Plaintiffs’ claims.

But Defendant does not present the court with sufficient basis to conclude that either of these principles affords him relief here. He offers a Chapter 7 discharge, but proffers no evidence or analysis to indicate that Plaintiffs’ claims were among the debts so discharged. To the contrary, he presents a civil suit commenced by Plaintiffs in the same bankruptcy court, which was pending after the discharge, and dismissed, not because of the discharge, but because Plaintiff PFF Management LLC had failed to abide by court orders. (RJN Exh. B.) But in this latter case, it is not apparent that the claims brought by Plaintiff PFF Management, LLC in that action are the same as those sued upon here by all Plaintiffs, as would be necessary for claim preclusion to apply. (See 640 Octavia LLC v. Walston (2025) 111 Cal.App.5th 861, 870 [“Claim preclusion applies only when ‘a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.’”])

The demurrer is therefore OVERRULED.

Superior Court of California

County of Los Angeles

Department 732

PFF MANAGEMENT LLC, et al.,

Plaintiffs,

v.

ROBERTO BAHENA, et al.,

Defendants.

Case No.: 23STCV25178

Hearing Date: July 15, 2026

[TENTATIVE] RULING RE:

Defendant Roberto Bahena's Demurrer to the Complaint

Defendant Roberto Bahena's Demurrer to the Complaint is OVERRULED .

Defendant to give notice.

Dated: July 15, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court